

Smt Poornima W/O Shashikantesh ... vs Sri Shashikantesh S/O Kashinath ... on 26 July, 2023

Author: Rajendra Badamikar

Bench: Rajendra Badamikar

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NC: 2023:KHC-D:7788

CP No. 100089 of 2023

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH

DATED THIS THE 26TH DAY OF JULY, 2023

BEFORE

THE HON'BLE MR JUSTICE RAJENDRA BADAMIKAR

CIVIL PETITION NO. 100089 OF 2023

BETWEEN:

SMT POORNIMA W/O SHASHIKANTESH RANJANAGI
AGED ABOUT 38 YEARS, OCC: PVT. JOB,
R/O. KALIDAS NAGAR,
KUSHTAGI ROAD, KOPPAL-583231

...PETITIONER

(BY SRI. D. V. PATTAR ADV., FOR SRI. ANAND R KOLLI, ADV.,)

AND:

SRI SHASHIKANTESH S/O KASHINATH RAJANAGI
AGE. 44 YEARS, OCC. ADVOCATE,
R/O. MATHAD BUILDING, NEAR NEW COURT,
OPP: AGIS GAS, VIDYA NAGAR,
HUBBALLI-580021

Digitally
signed by

...RESPONDENT

SUJATA
SUJATA SUBHASH
SUBHASH PAMMAR

PAMMAR Date:

2023.07.28 (NOTICE SERVED ON THE RESPONDENT)
11:25:02 -
0700

THIS CIVIL IS PETITION FILED U/SEC.24 OF CPC, PRAYING FOR TRANSFER OF MATRIMONIAL CASE NO.56/2023 ON THE FILE OF HON'BLE PRINCIPAL JUDGE, FAMILY COURT, DHARWAD TO HON'BLE PRINCIPAL JUDGE, FAMILY COURT, KOPPAL IN THE INTEREST OF JUSTICE AND EQUITY.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY,

THE COURT MADE THE FOLLOWING:

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NC: 2023:KHC-D:7788

CP No. 100089 of 2023

ORDER

Heard the learned counsel for the petitioner.

2. This petition is filed by the petitioner-wife under Section 24 of the Code of Civil Procedure, 1908 (for short, hereinafter referred to as 'CPC') for transferring M.C.No.56/2023 pending on the file of the learned Principal Judge, Family Court, Dharwad to the learned Principal Judge, Family Court, Koppal, wherein she is staying.

3. It is the contention of the petitioner that her marriage was solemnized with respondent on 04.05.2015 in Dharwad and out of the said wedlock, a daughter by name Kumari Anushka was born. It is further asserted that due to difference of opinion, the petitioner-wife was compelled to take shelter in her parental house in Koppal as the respondent has neglected to attend the petitioner and her daughter. It is further alleged that on false grounds, the respondent has filed a petition under Section 13 (1) (ia) & (ib) of the Hindu Marriage Act, 1955, on the NC: 2023:KHC-D:7788 file of the Principal Judge, Family Court, Dharwad. She asserted that she has no means and hence, she has filed Crl.Misc.No.70/2023 on the file of the Principal Judge, Family Court, Koppal, wherein interim maintenance was awarded. She asserts she is not in a position to travel from Koppal to Dharwad and hence, she would seek for transfer of the petition filed by the respondent-husband from the Principal Family Court, Dhaward to the Principal Family Court, Koppal.

4. The respondent, who is an advocate, though served, did not appear before the Court.

5. Having heard the arguments and perusing the records, it is evident that the relationship between the parties is undisputed. The husband has filed M.C.No.56/2023 on the file of Principal Judge, Family Court, Dharwad for dissolution of marriage, while the wife has filed Crl.Misc.No.70/2023 on the file of the Principal Judge, Family Court, Koppal seeking maintenance for herself and her minor child. Further, the records disclose NC: 2023:KHC-D:7788 that the minor child is residing with the petitioner-wife. It is evident that since she has no means, she is not in position to travel from Koppal

to Dharwad since she is to take care of her child. The respondent-husband being an advocate can attend the Koppal Court and prosecute the matter without any inconvenience. Under these circumstances, the petition requires to be allowed and accordingly, I proceed to pass the following:

ORDER

i) The petition is allowed.

ii) M.C.No.56/2023 pending on the file of the learned Principal Judge, Family Court, Dharwad is withdrawn and transferred to the Court of learned Principal Judge, Family Court, Koppal for disposal in accordance with law.

iii) Registry is directed to send a copy of this order to both the Courts for compliance with a direction to the Principal Judge, Family Court, Dharwad to transmit the records to the NC: 2023:KHC-D:7788 learned Principal Judge, Family Court, Koppal, at the earliest, for further needful.

iv) In view of disposal of the petition, pending interlocutory applications, if any, do not survive for consideration and are disposed of accordingly.

Sd/-

JUDGE SSP & YAN